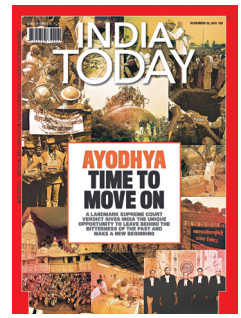
FROM THE

EDITOR-IN-CHIEF

The problem in India is that often when you think an issue is resolved, it isn't. It crops up in some form or another. Our recent history is littered with such examples. Currently, it is a controversy over the Gyanvapi mosque in Kashi and other ancient monuments. We thought all such disputes would be laid to rest after a five-member bench of the Supreme Court unanimously delivered a final verdict on the Ram Janmabhoomi-Babri Masjid title suit in 2019, in which it upheld the constitutionality of the Places of Worship (Special Provisions) Act, 1991, and enshrined it as a cornerstone of India's secular edifice. In ringing words, it said: "History and its wrongs shall not be used as instruments to oppress the future." While allowing the construction of the Ram temple in Ayodhya and allotting land for a mosque elsewhere, it emphatically said: "This court cannot entertain claims that stem from the actions of Mughal rulers against Hindu places of worship in a court of law today. For any person who seeks solace or recourse against actions of any number of ancient rulers, law is not the answer." The 1991 Act, enacted at the peak of the Ayodhya movement, sought to defuse communal tensions by putting a permanent cap on disputes of this nature. It stipulated that all places of worship must stay the way they were on August 15, 1947, while allowing leeway to the already sub judice Ayodhya matter to reach a settlement.



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Jurists had rationalised the Ayodhya judgment as a larger gesture of pragmatism, meant to restore balance and harmony to a seriously agitated body politic. It sated the desire emanating from one strand of the popular imagination, embodied in Hindutva. It gave the ruling BJP a spectacular showpiece of success. Even its ideological guru, the RSS, said its mission had been accomplished, the lid would now be closed on that chapter, and it would go back to "people-building". For the Indian republic, there's urgent work waiting to be done—like dealing with the global headwinds that are likely to stymie India's economic growth. Instead, the ghosts of the past have returned to haunt the nation again—and this time it is virtually raining disputes.

The cases involving the Gyanvapi mosque in Varanasi and the Shahi Idgah in Mathura have been revived. Both masjids came up, by all accounts, after Aurangzeb demolished temples at two of the holiest sites in Hinduism. A lot of history is beyond debate. It is no secret that temples were demolished by Ghazni, Khilji and Aurangzeb—often painted as the three horsemen of the Hindu Apocalypse—and many other kings. This is recorded with great flourish by their own chroniclers. The question is not whether Hindu kings also demolished Hindu temples—they did—but why these cases are being admitted when there is a specific Act of Parliament that explicitly states such disputes cannot be reopened.

Instead, as the Gyanvapi controversy reached the apex court, the Act itself came under the microscope. The courts have taken a somewhat naïve view in allowing the mosque survey without questioning the purpose, which is what started the whole controversy. Various petitioners and their endorsers are approaching the issue in subtler ways, advancing arguments that use the Act's own clauses to subvert its logic. Specifically, Section 4(3)(a) allows an exception for monuments of archaeological value. Suddenly, what seemed like an impregnable constitutional fortress, with the Supreme Court's seal, appears besieged from within and without.

This is happening even as moves are afoot to revive a plethora of such cases across the country. Even the venerable Taj Mahal has been dragged in. Petitioners claim that the world-famous mausoleum, built by Shah Jahan as an act of love for his wife, is an act of usurpation of Hindu culture. Then there's the Qutub Minar. That the complex holds plenty pre-Islamic architectural remains is well known. It was built partly out of the debris of demolished structures. The likelihood of temples having been among those is high—the kings of the Slave Dynasty were no shrinking violets on that front. But activists are gripped with a sudden urge to hold prayers before the idols of Lord Ganesha on the walls of the complex. The ASI has opposed such a plea in court stating that it is not a place of worship. But, for now, the genie is out of the bottle. The bumper harvest of mandir-masjid disputes, seen together, represents a new angst to reclaim India's Hindu past.

The BJP, for the moment, is playing the role of an innocent bystander, with the party president declaring that "all such issues are decided by the court and the Constitution, the BJP implements it in letter and spirit". Meanwhile, the momentum for converting old monuments continues to gather pace. We have seen in the past that mixing politics and religion can only have dangerous consequences. Like what happened when Rajiv Gandhi unlocked the gates of the Babri Masjid in 1986 to allow Hindus to worship at the site they believed was the birthplace of Lord Ram. He did this not out of any religious conviction but to counter the impression that he had succumbed to Muslim appeasement with his stand on the Shah Bano case. It became the genesis of the Ram Janmabhoomi movement, which culminated in the demolition of the Babri Masjid in December 1992. It was followed by riots across the country and bomb blasts in Mumbai in 1993, killing 1,150 people. The Congress party, which has been in power for 54 years, has always been accused of pandering to the Muslim community, making it easy to reinforce the narrative that the majority has got the short end of the stick. Therefore this upsurge of religious fervour among the Hindus to reassert their identity. It is a matter of faith, which cannot be questioned. The tiger is out of the cage and what it ends up doing is anyone's guess.

This week, we are calling it the Mandir Wapsi Movement in our cover story. The INDIA TODAY team has selected a set of disputes and come up with short sketches on their legal status. Managing Editor Sunil Menon, in a lead piece, explains the politics, the legal-constitutional quagmire and, most importantly, the history of these disputes.

My question is simple: Instead of distracting ourselves with disturbing themes from the past, shouldn't we be focusing on the present? GDP Wapsi, anyone?

(Aroon Purie)